

PROJECT NAME	ADDRESS	TMK
SMA ASSESSMENT NO.	ARCHITECT OF RECORD	SUBMISSION DATE
PREPARED BY	REVIEWER / CHECKER	FILING TYPE

REQ Required**COND** Conditional**NEW** Recent rule change↔ **BPC** Cross-ref → Building Permit Checklist**⚠ Recent Rule Changes to Know Before Filing**

- **v1.3 (July 2026) — Quarterly review.** Added an Act 293 historic-review note to Phase 4 (AIS/SHPD). Fixed repository link. Confirmed Act 125 split thresholds (\$750K / \$500K), the 2024 Maui Island Shoreline Rule / Erosion Hazard Line framework, and MC-12 Ch. 202 current — no regulatory changes to SMA procedure this cycle.
- **v1.2 — Erosion Hazard Line is the default setback line (2024 Shoreline Rule update).** Phase 1 reordered so the EHL mapped/unmapped check happens BEFORE any decision about ordering a certified shoreline survey. Phase 4 item on certified shoreline surveys rewritten: under the 2024 Maui Island Shoreline Rule update, where the EHL is mapped it IS the default shoreline setback line and no certified shoreline survey is required. A survey is now only needed when (1) the EHL is unmapped for the parcel, (2) the team requests an alternate setback on an accreting or erosion-resistant lot, or (3) a Shoreline Setback Variance is being filed. The former "abuts the shoreline → survey" trigger has been removed.
- **v1.1 — Cross-referenced with Building Permit Checklist v1.4 (Apr 2026).** All ↔ BPC § X cross-references re-numbered to match BPC v1.3/v1.4 section structure (Civil/Grading is now § 10, Agency Approvals § 11, Frequently Flagged § 12). The Building Permit Checklist was given reverse ↔ SMA Phase X tags so the two documents now read as a matched pair.
- **Act 125 (effective May 29, 2025).** Amended HRS 205A-22. Minor Permit valuation ceiling is now \$750,000 for non-shoreline parcels, but only \$500,000 for shoreline parcels or parcels impacted by waves, storm surge, high tide, or shoreline erosion. Above these amounts → Major / SMA Use Permit.
- **Maui SMA Rules amended Aug 25, 2024 (MC-12, Chapter 202).** Clarified categorical exemptions; expressly stated that single-family residences are not categorical exemptions (though they may still be found exempt after assessment); tightened treatment of repair / renovation scope, ground disturbance, and cumulative effects.
- **MAPPS-only filing.** Maui Planning Department no longer accepts paper SMA applications. All filings go through the online MAPPS portal, and a processed Land Use Designation (LUD) form must be attached to any SMA Use Permit filing.
- **Shoreline setback / erosion.** Maui's shoreline framework now embeds projected erosion and 3.2 ft of sea-level rise into the Erosion Hazard Line used for setback determinations — directly relevant to most South Maui oceanfront parcels.
- **Legacy PDF packets are stale.** Some County PDFs still cite the pre-2025 \$500,000 general Major threshold. Use current MAPPS guidance and Act 125 language, not the legacy packets.

Phase 1 — Parcel Due Diligence & Overlay Screening

Before any design commitment or valuation work. South Maui coastal parcels frequently carry multiple overlapping overlays.

- ☐ **REQ** Confirm parcel lies within the mapped Maui SMA boundary (County SMA maps / MAPPS lookup).
SMA approval is the first permit required for development in the SMA — other agencies should not authorize development first.
 ↔ **BPC § 4 Site Plan (SMA notation) · § 11 Agency Approvals**

- ☐ **REQ** Pull current TMK report: zoning, community plan designation, state land use district, flood zone, shoreline overlays, special districts.
 ↔ **BPC § 4 Site Plan**

- ☐ **REQ** Obtain a processed Land Use Designation (LUD) form through MAPPS.
Required attachment for any SMA Use Permit filing. File the LUD request early — it is a separate MAPPS workflow.

- ☐ **REQ** Identify whether the parcel is a shoreline parcel or is impacted by waves, storm surge, high tide, or shoreline erosion.
This determination controls whether the \$500,000 or \$750,000 Minor threshold applies under Act 125.

- ☐ **REQ** Determine whether the parcel has a mapped Erosion Hazard Line (EHL) using the County's published Maui Island EHL mapping.
This check drives every downstream shoreline decision and must happen BEFORE ordering any certified shoreline survey. The EHL was modeled by the UH Climate Resilience Collaborative (projected erosion + 3.2 ft sea-level rise) with minor County adjustments for accreting or geologically stable shorelines.
 ↔ **BPC § 4 Site Plan (coastal setback)**

- ☐ **REQ** Record the resulting default shoreline setback line based on the EHL check in p1-05.
If the EHL is mapped, the EHL itself is the default setback line — under the 2024 Maui Island Shoreline Rule update, no certified shoreline survey is required in this default case. If the EHL is NOT mapped for the parcel, the default setback reverts to 200 ft (or an optional lot-depth-based formula), and a state-certified shoreline survey under HRS 205A will be needed in Phase 4 to establish the baseline.
 ↔ **BPC § 4 Site Plan (coastal setback)**

- ☐ **COND** Flag whether the project team intends to request an alternate shoreline setback (e.g., lot is accreting or known to be geologically erosion-resistant).
If yes, a state-certified shoreline survey will also be required in Phase 4 — the EHL distance is then applied from the certified shoreline instead of from the default EHL line. If the Planning Director agrees the shoreline is accreting or erosion-resistant, the setback may instead be established using the unmapped-EHL method.

- ☐ **REQ** Confirm FEMA flood zone and whether any proposed work would trigger a Flood Development Permit.
If required, the Flood Permit must issue before an SMA Exemption or Minor Permit approval.
 ↔ **BPC § 4 Site Plan (flood zone designation)**

- ☐ **COND** Screen for tsunami inundation, coastal dune, wetland, estuary, and geologically hazardous overlays.
These feed directly into the County's significance criteria and can push a project into Major.

- ☐ **COND** Check for mapped cultural / historic / archaeological resources or iwi kūpuna sensitivity in the vicinity.
 ↔ **BPC § 4 Site Plan (SHPD) · § 11 SHPD review**

- ☐ **REQ** Verify consistency with County General Plan, Maui Island Plan, applicable Community Plan (South Maui), and zoning.
Inconsistency may require a concurrent plan amendment. South Maui Community Plan update is still underway.

Phase 2 — Threshold Determination — Is This "Development"?

The first legal question is not cost — it is whether the activity is "development" under HRS 205A. Only then does it sort into Exempt / Minor / Major.

- ☐ **REQ** Test scope against the HRS 205A definition of "development" (placement of structures, grading, dredging, mining, change in density/intensity, substantial changes in appearance of land or water, etc.).
- ☐ **REQ NEW** Check the 2024-amended categorical exemptions list in MC-12 Ch. 202 before assuming exempt status.
The 2024 rules clarified several exemptions and confirmed that single-family residences are not categorical exemptions.
- ☐ **COND** For repair / renovation / like-for-like work, confirm no new ground disturbance, no expansion of scope, and no cumulative effect that would pull the work back into SMA review.
- ☐ **REQ** Prepare a defensible valuation estimate (construction cost basis) for the proposed development.
↔ **BPC § 1 PS-Form A (construction value)**
- ☐ **REQ NEW** Apply current Act 125 thresholds: Minor ≤ \$750,000 on non-shoreline parcels · Minor ≤ \$500,000 on shoreline or impacted parcels · Above → Major / SMA Use Permit.
For most South Maui oceanfront sites, the operative ceiling is \$500,000.
- ☐ **REQ** Independently assess whether the project may have a substantial adverse environmental or ecological effect (cumulative effects included). If yes → Major, regardless of valuation.
- ☐ **COND** Flag "Major-risk" characteristics even if cost is low: seawalls/revetments, shoreline hardscape, major grading, new structures near shoreline, mapped erosion/flood exposure, access impacts, habitat/cultural concerns, or controversial public interest.

Phase 3 — SMA Assessment Filing (MAPPS)

The SMA Assessment is the first practical filing on Maui. The Planning Director uses it to determine Exempt / Minor / Major / Emergency / Inconsistent.

- ☐ **REQ** Ownership documentation and owner's authorization (if applicant is not owner).
↔ **BPC § 1 Ownership & Authorization**

- ☐ **REQ** TMK, parcel area, and location map.

- ☐ **REQ** Scaled development / site plan showing all sensitive features (shoreline, setback line, flood zone boundary, drainage, access, vegetation, cultural features).
↔ **BPC § 4 Site Plan (all subitems)**

- ☐ **COND** Floor plans, sections, and elevations for any new or expanded structures.
↔ **BPC § 5 Architectural**

- ☐ **REQ** Site photographs (existing conditions, shoreline, access, adjacent uses).

- ☐ **REQ** Written project description and construction valuation estimate.

- ☐ **REQ** Written impact analysis addressing HRS 205A-26 criteria: coastal resources, shoreline access, drainage, wastewater, erosion/flood/SLR exposure, views, landforms, cultural resources, cumulative impacts, plan/zoning consistency.
This is where most applications succeed or fail — it builds the administrative record.

- ☐ **REQ** Signed zoning / flood confirmation form.

- ☐ **REQ** Attach the processed LUD form.

- ☐ **COND** Chapter 343 (HEPA) materials (EA/EIS or agency decision documents) if environmental review is triggered.

- ☐ **COND** Comments previously received from agencies or community organizations.

- ☐ **REQ** Submit the entire package through MAPPS online portal (paper not accepted).
↔ **BPC § 1 MAPPS submission method**

- ☐ **COND** Respond to Director's circulation to reviewing agencies (typical 30-day comment window).

- ☐ **REQ** Provide applicant responses to agency comments until the Department deems the application complete.

- ☐ **REQ** Receive written Director determination (Exempt / Minor / Major / Emergency / Inconsistent) within 30 calendar days of completeness.

Phase 4 — Parallel Coastal & Environmental Reviews

Almost every South Maui coastal project triggers at least one of these alongside the SMA track.

- ☐ **COND** File for Shoreline Setback Approval / Determination (SSAD) for work allowed within the shoreline setback area.
↔ **BPC § 4 Site Plan (coastal setback)**
- ☐ **COND** File for Shoreline Setback Variance (SSV) for structures or activities not otherwise permitted in the setback area.
- ☐ **COND** Obtain a state-certified shoreline survey (HRS 205A, DLNR) ONLY if one of three triggers applies; otherwise skip — the EHL is the default setback line.
Under the 2024 Maui Island Shoreline Rule update, a certified shoreline survey is required only when: (1) the parcel has no mapped EHL and you need to establish the baseline for the default 200 ft / lot-depth-based setback; (2) the project team is requesting an alternate setback on an accreting or geologically erosion-resistant lot, in which case the EHL horizontal distance is measured from the certified shoreline instead; or (3) a Shoreline Setback Variance (SSV) is being filed under HRS 205A-43. If none of those apply and the EHL is mapped, the former "abuts the shoreline → order a survey" requirement has been removed and no survey is needed. Confirm the relevant trigger from Phase 1 items p1-06 and p1-07 before ordering.
↔ **BPC § 4 Site Plan (coastal setback)**
- ☐ **COND** File and obtain Flood Development Permit before SMA Exemption or Minor approval issues.
↔ **BPC § 4 Site Plan (FEMA FIRM / BFE)**
- ☐ **COND** Complete Chapter 343 environmental review (EA/EIS) if the project involves state land, state funds, shoreline area, conservation district, historic sites, or other HEPA triggers.
- ☐ **COND** Archaeological Inventory Survey (AIS) / SHPD consultation if cultural resources are implicated.
Act 293 (in effect since July 3, 2025) narrowed when Chapter 6E historic review is triggered for existing residential property: review applies only if the structure is over 50 years old AND listed or nominated on the Hawai'i or National Register, or located in a historic district. It is not a blanket exemption — projects with archaeological, burial, shoreline, or nonresidential characteristics can still require Chapter 6E review. See the July 2026 permit reform notes.
↔ **BPC § 11 SHPD approval**
- ☐ **COND** Initiate concurrent General Plan / Community Plan / zoning amendment if the Director finds the project inconsistent.

Phase 5A — SMA Minor Permit Path

Use this track only if the Director determines the project qualifies as Minor under current Act 125 thresholds AND has no substantial adverse effect.

- ☐ **REQ** Confirm the SMA Assessment can serve as the Minor application (Maui's current procedure).
- ☐ **REQ** Ensure the impact narrative affirmatively supports the "no substantial adverse environmental or ecological effect" finding.
- ☐ **REQ** Receive Director's written Minor Permit decision (approve / approve with conditions / deny).
- ☐ **COND** Accept and document any permit conditions (BMPs, erosion control, wastewater, drainage, access, vegetation, etc.).
↔ **BPC § 10 Civil/Grading BMPs**
- ☐ **REQ** Confirm Director reports the approved Minor Permit to the Maui Planning Commission at its next regular meeting.
- ☐ **COND** Preserve appeal rights / track appeal window for any aggrieved party.

Phase 5B — SMA Use Permit (Major) Path

Applies if valuation exceeds the Act 125 threshold or the project may have a substantial adverse environmental / ecological effect. Heard by the Maui Planning Commission.

- ☐ **REQ** File the SMA Use Permit (SM1) application through MAPPS with fully processed LUD attached.
- ☐ **REQ** Include all assessment-level materials plus a findings-ready record under HRS 205A-26.
- ☐ **REQ** Pay applicable Major Use Permit fees.
- ☐ **REQ** Department circulates to reviewing agencies; applicant responds in writing to all comments.
- ☐ **REQ** Department confirms the application is complete before scheduling hearing.
- ☐ **REQ** Prepare Notice of Application; publish after department review.
- ☐ **REQ** Post a 9 sq ft project sign at the property.
- ☐ **REQ** Mail hearing notice to owners of record within 500 ft of the subject parcel, not less than 30 calendar days before the hearing.
- ☐ **REQ** Director publishes public notice of hearing not less than 30 days before the hearing date.
- ☐ **REQ** Confirm the Department has notified the applicant of the hearing date at least 45 days prior.
- ☐ **REQ** Prepare a findings-based presentation demonstrating HRS 205A-26 compliance: minimized/offset impacts, consistency with Ch. 205A objectives, consistency with plans and zoning, and appropriate conditions.
- ☐ **COND** Coordinate testimony, expert witnesses (coastal, civil, cultural, biologist), and exhibits.
- ☐ **REQ** Attend the Maui Planning Commission hearing.
- ☐ **REQ** Receive written Decision and Order with terms, conditions, and findings (or denial if criteria not met).
- ☐ **COND** Track appeal window and preserve the administrative record.

Phase 6 — Post-Approval & Sequencing With Building Plans

Tie the SMA outcome into the parallel Building Plan submittal workflow. This is where the two sister checklists must lock together.

- ☐ **REQ** Transcribe every SMA permit condition into the Building Permit Submission package — specifically into the site plan notes, civil/grading BMPs, and agency approvals section.
↔ **BPC § 4, § 10, § 11**
- ☐ **REQ** Do not submit for Building Permit issuance until SMA approval (and any SSAD/SSV, Flood, Ch. 343) are in hand — other agencies cannot authorize development ahead of SMA.
↔ **BPC § 11 Planning Department / SMA Permit line**
- ☐ **COND** Incorporate erosion control, BMP, drainage, wastewater, and landscape conditions into civil drawings and SWPPP.
↔ **BPC § 10 Civil/Grading BMPs**
- ☐ **COND** Schedule any required pre-construction coastal monitoring, archaeological monitoring, or cultural protocol before ground disturbance.
- ☐ **REQ** Maintain a compliance log of every SMA condition through construction and final inspection.
- ☐ **COND** Track SMA permit expiration / extension rules and request extension before lapse if construction schedule slips.
- ☐ **REQ** File any required final / close-out compliance reports with the Planning Department.

Phase 7 — Common Traps — Final QC Pass

Final sanity check — each of these has derailed South Maui coastal projects.

- ☐ **REQ** Confirm you are not relying on pre-2025 PDF thresholds (\$500K general Major line). Use Act 125 split thresholds.
 - ☐ **REQ** Treat shoreline setback review as a parallel, not secondary, workflow.
 - ☐ **REQ** Do not assume a single-family residence or a "repair" is automatically exempt.
 - ☐ **REQ** Verify plan/zoning consistency before design is too far advanced to pivot.
 - ☐ **REQ** Document cumulative effects from any prior/adjacent work on the same compound or ownership.
 - ☐ **REQ** Confirm valuation basis is defensible and includes the full scope of work (no artificial splitting).
 - ☐ **REQ** Confirm the Building Permit Submission Checklist has the SMA reference lines populated in § 4 and § 11 before building permit submittal.
- ↔ **BPC § 4 + § 11**

Cross-Reference Matrix — SMA ↔ Building Permit Submission Checklist

Read across: each SMA checklist phase ties to one or more sections of the Building Permit Submission Checklist so the two documents move in lockstep.

SMA Permit Checklist Item	Building Permit Submission Checklist Reference
Phase 1 Due Diligence — SMA overlay, flood zone, shoreline, SHPD screening	BPC § 4 Site Plan (SMA, FEMA flood zone, SHPD notations)
Phase 1 LUD form (zoning + community plan + state land use)	BPC § 11 Planning Department approval
Phase 2 Threshold — valuation basis	BPC § 1 PS-Form A construction value
Phase 3 SMA Assessment — site plan, impact analysis, MAPPS submission	BPC § 4 Site Plan, § 2 MAPPS digital standards
Phase 3 Ownership/authorization documents	BPC § 1 Ownership & Authorization, PS-Form B
Phase 4 SSAD / SSV — shoreline setback	BPC § 4 Site Plan coastal setback line
Phase 4 Flood Development Permit	BPC § 4 Site Plan FEMA flood zone / BFE
Phase 4 AIS / SHPD consultation	BPC § 4 Site Plan SHPD, § 11 SHPD approval
Phase 5A/5B SMA decision	BPC § 11 SMA Permit line (must precede building permit)
Phase 6 Transcription of SMA conditions	BPC § 4 (site plan notes), § 10 (Civil/BMPs), § 11 (Agency approvals)
Phase 7 QC pass	BPC § 12 Frequently Flagged QC pass

Sources & References

HRS Chapter 205A (Coastal Zone Management Law), Part II Special Management Areas · HRS § 205A-22 (definitions, as amended by Act 125, 2025) · HRS § 205A-26 (SMA approval criteria) · Maui Planning Commission SMA Rules, MC-12 Chapter 202 (amended effective August 25, 2024) · Maui County Planning Department — MAPPS Customer Self-Service portal (mapps.mauicounty.gov) · Maui County Planning — Maui Island Shoreline Rule Update (2024), EHL as default shoreline setback line · Maui County shoreline setback rules and

Erosion Hazard Line framework (modeled by UH Climate Resilience Collaborative, projected erosion + 3.2 ft sea-level-rise assumption) · Maui County General Plan, Maui Island Plan, applicable Community Plans · Hawai'i Environmental Policy Act (HRS Chapter 343) · Maui County flood hazard rules (Flood Development Permit)

Prepared by O'en Maui Architecture + Design · studio@oenmaui.com · Rev. July 2026 — v1.3

This checklist reflects publicly available Maui Planning Department requirements and firm experience as of the revision date. It is a working procedural tool, not legal advice. Rules, thresholds, and procedures change — confirm current requirements with the Maui Planning Department and qualified counsel before filing. Always verify parcel-specific overlays and current Community Plan status for South Maui before relying on any threshold determination.